

ATPL EASA STUDY GUIDE | 010 - AIR LAW

Chapter 22: Facilitation (Annex 9)

Syllabus Source: CAE Oxford (pp. 461-470) | Pass Target: >= 90% AviationExam

1. PURPOSE & CORE DOCUMENTS (ANNEX 9)

Annex 9 aims to prevent unnecessary delays to aircraft, crews, passengers, and cargo, especially in the administration of customs, immigration, quarantine, and health clearance procedures.

- General Declaration (GenDec): The basic document of entry and departure for an aircraft, signed by pilot-in-command or authorized agent, reporting aircraft registration, flight routing, number of crew and passengers, and public health declaration.
- Passenger Manifest: List of passenger names, embarkation points, and disembarkation points. Contracting States shall not require passenger manifests where automated systems exist.
- Cargo Manifest: Commercial document detailing air waybill numbers, nature of goods, packages, and destination.
- Crew Member Certificate (CMC): Standardized identification card issued to operating crew members to facilitate entry without visa during layover.

2. INADMISSIBLE PERSONS VS DEPORTEES

- Inadmissible Person: A person who is or will be refused admission to a State by its authorities (e.g. expired visa, fraudulent passport). The OPERATOR that transported the person is legally responsible for their custody and return transportation to their point of embarkation.
- Deportee: A person who had legally entered a State but is formally ordered to leave by government authorities. The State ordering deportation is responsible for custody and arranging transit.

3. AIRCRAFT DISINSECTION & PUBLIC HEALTH

Disinsection of aircraft cabins and flight decks is carried out to prevent the spread of mosquito-borne diseases (e.g. malaria, dengue). Permitted methods under WHO/ICAO include disinsection on arrival, pre-flight and top-of-descent spraying, or residual insecticide treatment.

4. FACILITATION OF AIR CARGO & TRANSIT PASSENGERS

- Direct Transit: Contracting States shall ensure that passengers in direct airside transit without leaving the airport international transit area are not required to hold transit visas, except under special national security declarations.
- Air Cargo Clearance: Customs clearance for standard air cargo shall be completed as soon as possible and in any event within 4 hours of arrival, utilizing electronic data interchange (EDI).

5. AVIATIONEXAM PRACTICE QUESTIONS (WITH EXPLANATIONS)

Q1: Who is financially and operationally responsible for removing an inadmissible passenger from a State?

- [A]: The passenger's country of nationality

- [B]: The State of destination
- [C]: The aircraft operator that carried the passenger
- [D]: ICAO Facilitation Fund

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [C]. Under Annex 9, the operator that transported an inadmissible person is responsible for transporting them back to point of origin.

Q2: What is the primary purpose of the General Declaration (GenDec)?

- [A]: Flight plan filing with ATC
- [B]: Aircraft entry and clearance document for customs, immigration, and public health
- [C]: Weight and balance calculation
- [D]: Continuing airworthiness tracking

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. The GenDec is the official clearance document for customs, immigration, and public health.

Q3: What document permits operating flight crew members visa-free temporary entry during international layovers?

- [A]: Student pilot licence
- [B]: Crew Member Certificate (CMC)
- [C]: Part-MED certificate
- [D]: Operator flight release

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. The Crew Member Certificate (CMC) facilitates temporary visa-free entry for active crew during layovers.

Q4: Are transit passengers remaining in the airport international transit area required to obtain transit visas upon arrival?

- [A]: Yes, always
- [B]: No, Contracting States shall not require transit visas for direct transit passengers
- [C]: Only for stays exceeding 2 hours
- [D]: Yes, if arriving from outside Europe

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. Under Annex 9, direct transit passengers remaining airside do not require visas.

Q5: What is the primary purpose of the Health section in the General Declaration?

- [A]: Reporting crew duty time
- [B]: Declaring on-board health conditions, disinsection, and any illness before landing
- [C]: Verifying passenger vaccine records only
- [D]: Registering dangerous goods cargo

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. The health section of the GenDec reports details of any illness on board and disinsection carried out during flight.

Q6: How long may an operating flight crew member stay in a State without a visa using a Crew Member Certificate?

- [A]: 24 hours only
- [B]: For the duration of the scheduled layover / turn-around
- [C]: 30 days
- [D]: Visas are always required for flight crew

[?] OFFICIAL RATIONALE & ANALYSIS - Detailed Answer Explanation

CORRECT: [B]. The CMC allows operating crew to remain visa-free for the scheduled layover period until their next departure flight.